

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION, PRICE
JUSTIFICATION (JOFOC)**

**ACQUISITION OF HOTEL ACCOMMODATIONS IN SUPPORT OF SENIOR
HIGH LEVEL USG VIP VISIT**

1. I recommend that the Department of State use other than full and open competition for the acquisition of hotel rooms for this VIP visit. The estimated cost is Euro 450,000.00 or US equivalent \$468,262.28.

2. Nature and/or description of the action being approved.

Senior High Level USG Principal traveling with a delegation inclusive of support elements in: Security, Communications, Logistics and Operations.

3. A description of the supplies or services required to meet the agency's needs.

Hotel Accommodation

Contractor: Roberto Naldi Collection Srl, Via Posillipo, 9 80123 Naples, Italy – Parco dei Principi Grand Hotel

Estimated number of Room/Nights: 540

4. An identification of the statutory authority permitting other than full and open competition.

[x] 41 U.S.C. 253 (c) (2), FAR 6.302-2; Unusual and Compelling Urgency;
(Based on the available time and urgency of the requirement as detailed below)

Security concerns prohibit sufficient advanced notification of Senior High Level USG Principal travel to allow for sufficient time to conduct full and open competition. The Department of State can only communicate with the staff at Posts abroad when authorization is given due to security concerns. They have an extremely short turnaround time when authorization has been granted for negotiations to commence and site selections to be finalized with both the local vendors and Posts before the actual Senior High Level USG VIP visit occurs.

Security and logistical teams make determinations during the site survey as to which hotels are most suitable for the Senior High-Level USG VIP and his traveling staff to remain overnight. Consideration of the Senior High Level USG Principal and the location are taken into consideration as a determining factor.

Unique requirements for communications support are under severe time limitations and always a determining factor in the selection process as its capacity to be augmented to the unique requirements necessary to support certain Senior High Level USG Principals.

Many of the arrangements for hotel and transportation are often not confirmed until just before the actual visit. In addition to supporting a large delegation within a short time frame, last minute and frequent changes of itineraries for supporting personnel often result in significant changes in how Posts work with the vendors. With the exception of a few trips, contracts are not permitted to be signed until the Department of State (Post) has written confirmation from all supporting agencies, which enables collection of funds from said agencies in the event of cancellation. This results in an unusual and compelling urgency in accordance with 41 U.S.C. 253 (c) (2), FAR 6.302-2.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Security and logistics are the Department of State's primary considerations when procuring hotel rooms. The Department of State must be able to provide a safe and secure environment for VIP visitors. Frequently VIP visits are not announced or confirmed in sufficient time to conduct a competition, creating an urgent and compelling need. At other times, the security requirements and/or requirements of the host country government limit the acquisition to one or a small number of predetermined hotels.

☒ The VIP visit information was not available in sufficient time thereby creating an urgent and compelling need.

☐ The host country government requires the use of this/these hotel(s).

☒ The proposed contractor has the following unique qualifications which meet the Department of State's security and logistical requirements.

☐ Set-back (hotel is safe distance from the street)

☒ Location (able to secure building, travel route; distance to and from event)

☒ Size and number of rooms (able to house everyone in one hotel)

☐ Conference facilities (adequate space for meetings, press conferences)

☐ Communications (able to install equipment/lines, command center)

☒ Accommodating to security needs

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

Due to urgency and exception in FAR 25.401(a)(5) this solicitation cannot be posted but the JOFOC will be published in SAM.gov.

The following other hotels were reviewed, and they were all suitable, but they did not have enough rooms available to accommodate all VIP visitors. Visitors will be accommodated among the following hotels taking rooms as many as were available: The Hoxton Hotel, NH Veneto Hotel, Hotel Sina Bernini, The St. Regis Hotel, Westin Excelsior Hotel, Rome Cavalieri Hotel.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Prices for these hotel rooms are similar to the prices received from other vendors.

8. Any other facts supporting the use of other than full and open competition.

There is a limited availability of hotel rooms due to the last-minute confirmation of the event, the holiday season, and the beginning of the Jubilee celebration during which time this visit shall take place. It is imperative that the award of the contract is made immediately in order to secure available services. If contract award is not made in a timely manner, there is a high risk that there will be no hotel rooms available to accommodate the Senior High-Level USG VIP and his traveling staff.

9. A listing of sources, if any, that expressed, in writing, an interest in the acquisition.
None.

10. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

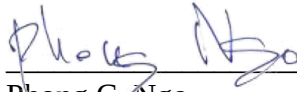
None.

CERTIFICATIONS

I certify that the information in this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition to the best of my knowledge and belief.

December 27, 2024

Date:



Phong C. Ngo
Director

I certify that this justification is accurate and complete to the best of my knowledge and belief. Based on my assessment, I conclude that other than full and open competition is justified and the proposed price is fair and reasonable.

Sheridan, Crystal (SheridanCD@state.gov)
12/27/2024 13:41 GMT



Date:

Crystal D. Sheridan
Contracting Officer

As the Competition Advocate at post, I approve this justification:

Kilburg, Keely (KilburgKZ@state.gov)
12/27/2024 14:17 GMT



Date:

Keely Z. Kilburg
Management Officer